IN THE COURT OF THE HON'BLE DISTRICT JUDGE OF COIMBATORE

H.M.G.O.P. NO. OF 2024

(In the matter of Minors Aarav Nayar and Aanya Nayar)

Mrs.Soumya Radharaman
Rep. by her Power Agent
Mr.C.R.Pankajakshan Nayar - Petitioner

-Vs-

1. Mr.Shyam Mohan Somasekaran
2. Mrs. Prabha Pankajakshan - Respondents

PROOF AFFIDAVIT

I, Mr.C.R.Pankajakshan Nayar S/o. Late. Raman Raghavapanicker, aged 79 years, residing at D.No.45A, Bharathi Park Road II, Saibaba Colony, Coimbatore 641011 do hereby solemnly affirm and state as follows:

1. I am the deponent herein and power agent of petitioner in main petition. I know the facts of the case.

2. That the property morefully described in Schedule hereunder measuring an extent of 4363 sq.ft or 10 cents 3sq.ft of vacant land originally belonged to the late husband of the petitioner namely Mr.Pradeep Nayar absolutely by virtue of a Sale Deed dated 26.10.1995, registered as Doc. No. 5227/1995 at SRO, Vadavalli executed by vendor therein for valid consideration and since then the said Mr.Pradeep Nayar was in peaceful possession and enjoyment of the said property as its absolute owner until his demise. Whereas, the said Mr.Pradeep Nayar during his life time put up a residential structure over the said property and the same has been vacant ever since he moved to USA.

3. Whileso, the said Mr.Pradeep Nayar died intestate on 19.09.2020 by leaving behind his mother viz., the 2nd respondent, wife namely the petitioner herein and two minor children more particularly a son by name Aarav Nayar and daughter by name Aanya Nayar as his legal heirs to succeed his estates. The said Minors Aarav Nayar

and Aanya Nayar are aged 16 and 11 years respectively and they hold 2/4th share over the said property along with their mother and grandmother.

4. The petitioner humbly submits that the petitioner mentioned property is located in Coimbatore, while she, along with her minor children is residing in the United States of America. Consequently, the petitioner is unable to manage the property effectively, and it is very inconvenient for her to travel to India to maintain it regularly. As a result, the property has not been properly managed, leading to its gradual deterioration in both condition and value. Additionally, the petitioner is facing financial difficulties in meeting the best needs of her minor children following her husband's demise. Therefore, considering the necessities and practicalities regarding the property described in the Schedule, the petitioner proposed to dispose of the property in the best interests of the minors, Aarav Nayar and Aanya Nayar.

5. While that be so, the respondent having known that the said property is available for sale, offered to purchase the same for a total sale consideration of Rs.60,00,000/- and also paid an advance of Rs.50,000/- by cash to that effect on 29.05.2024 and agreed to pay the remaining consideration within a period of 4 months provided the petitioner and 2nd respondent ought to obtain court permission in order to deposit consideration towards minors' share as directed by this hon'ble court, which terms were brought into writing vide unregistered Sale Agreement dated 29.05.2024. The petitioner humbly submits that the price offered by 1st respondent with respect of Schedule mentioned property provides appropriate investment possibilities including purchase of any other properties in the name of minors under maintainable perimeter or in a manner as to be directed by this hon'ble court for the entire benefit of said minors.

6. The petitioner humble submits that the 2nd respondent is added as a party since she has got 1/4th share of the schedule mentioned property and she along with the petitioner has executed the aforesaid unregistered Sale Agreement dated 29.05.2024. Further, the present state of affairs of property are to continue and there will not be any income to minor by retaining the said property. The sale consideration offered by the 1st respondent is a very good and attractive one. The petitioner submits that if the sale price in respect of sale of minors' share of property is invested purposefully, then the net benefit and income will be more than what is

derived at present. The petitioner shall abide by the direction of this hon'ble court with respect to investment of the sale price towards the share of minors Aarav Nayar and Aanya Nayar. The petitioner states that unless the permission to sell minors' share of property by the mother of the minors is granted, the petitioner will suffer substantial loss.

Therefore, I pray that this Hon'ble court may be pleased to pass an order by entertaining the main petition and allow the same as prayed for and thus render justice.

Solemnly affirm and signed
before me at Coimbatore on 13/6/2024

DEPONENT

ADVOCATE, COIMBATORE.

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